

Opinion of the Court

we cannot conclude that the errors in the jury instructions were “harmless beyond a reasonable doubt.” *Neder v. United States*, 527 U.S. 1, 16 (1999) (internal quotation marks omitted). We accordingly vacate Governor McDonnell’s convictions.

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Governor McDonnell raises two additional claims. First, he argues that the charges against him must be dismissed because the honest services statute and the Hobbs Act are unconstitutionally vague. See Brief for Petitioner 58–61. We reject that claim. For purposes of this case, the parties defined honest services fraud and Hobbs Act extortion with reference to § 201 of the federal bribery statute. Because we have interpreted the term “official act” in § 201(a)(3) in a way that avoids the vagueness concerns raised by Governor McDonnell, we decline to invalidate those statutes under the facts here. See *Skilling*, 561 U.S., at 403 (seeking “to construe, not condemn, Congress’ enactments”).

Second, Governor McDonnell argues that the charges must be dismissed because there is insufficient evidence that he committed an “official act,” or that he agreed to do so. Brief for Petitioner 44–45. Because the parties have not had an opportunity to address that question in light of the interpretation of § 201(a)(3) adopted by this Court, we leave it for the Court of Appeals to resolve in the first instance. If the court below determines that there is sufficient evidence for a jury to convict Governor McDonnell of committing or agreeing to commit an “official act,” his case may be set for a new trial. If the court instead determines that the evidence is insufficient, the charges against him must be dismissed. We express no view on that question.

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There is no doubt that this case is distasteful; it may be worse than that. But our concern is not with tawdry tales of Ferraris, Rolexes, and ball gowns. It is instead with the